

But how can we decide whether “everyone ought to act” on a certain reason or maxim? Kant proposes an interesting test that we can use to determine whether we truly believe that everyone ought to act on a certain reason or maxim. He asks us to imagine that when we act on a certain maxim, the laws of nature forced everyone in the world to follow that same maxim. Would I be willing to act on a certain maxim if I knew that I would then have to live in a world in which everyone always acted on that same maxim? If I am not willing to live in a world in which everyone acts on a certain maxim, then it is morally wrong for me to act on that maxim. Kant summarizes this conclusion in this principle: “That is, *I am never to act unless I am acting on a maxim that I can will to become a universal law.*”

Kant explains what this principle means in practice in the following passage from the *Groundwork of the Metaphysics of Morals*. Notice that Kant does not rely on a consideration of consequences:

Thus, the basic principle that the will must follow is the principle of conforming to universal law. . . . Only this principle can prevent duty from becoming a vain delusion and a mythical notion. . . .

We can express the basic principle of the categorical imperative in different words if we first note that the universal laws of cause and effect that govern the world are what we properly mean by “nature” in the most general sense of the word (these laws give nature its form). For nature is the existence of things insofar as they are structured by general laws. Consequently, the basic principle of the categorical imperative can also be expressed in the following version: *Act as if the maxims you choose to follow always became universal laws of nature.*

We will now enumerate a few of the duties that follow from this version of the categorical imperative. We will adopt the usual practice of classifying duties into perfect and imperfect duties and subclassifying each of these into duties to ourselves and duties to others.

1. *Perfect duty to oneself.* Imagine a man who has been reduced to despair by a series of misfortunes. Suppose he feels tired of living, but is still able to ask himself whether it would be contrary to duty to take his own life. So he asks whether the maxim of his action could become a universal law of nature. His maxim is this: “Out of self-love I will adopt the principle that I will end my life once it contains more evils than satisfactions.” Our man can then ask himself whether this principle, which is based on the feeling of self-love, can become a universal law of nature. He will see at once that a system of nature that contained a law that destroyed life by means of the very feeling whose function it is to sustain life would contradict itself. Therefore, such a law could not be part of a system of nature. Consequently, his maxim cannot become a universal law of nature so it violates the basic principle of morality.

2. *Perfect duty to others.* Imagine another person who finds himself forced to borrow some money. He knows that he will not be able to repay it, but he also knows that nobody will lend him anything unless he promises to repay it. So he is tempted to make such a promise. But he asks himself: Would such a promise be consistent with duty? If he were to make such a promise the maxim of his action would be this: “When I need money, I will borrow it and promise to repay it even if I know that I will never do so.” Now I personally might be able to live according to this principle of self-interest. But the question is: Is it right? So I ask myself: What if my maxim were to become a universal law? Then I see at once that it could never even become a universal law of nature since it would contradict itself. For suppose it became a general rule that everyone started making promises he never intended to keep. Then promises themselves would become impossible as well as the purposes one might want to achieve by promising. For no one would ever believe that anything was promised to him, but would mock all “promises” as empty deceptions.

QUICK REVIEW

Kant’s categorical imperative—the basic principle of morality—is the conclusion (3) of the preceding argument, which says that to be a morally good person I must never do something unless it is what I believe everyone ought to do; in other words, it is morally wrong for me to do something unless it is something that I am willing to have everyone do and so something I believe everyone could do.

CRITICAL THINKING



Does Kant assume that a person could never will to universalize evil or harm? Is this assumption correct?

Two things fill the mind with ever new and increasing admiration and awe: the starry heavens above and the moral law within.

IMMANUEL KANT

QUICK REVIEW

Kant argues that committing suicide, making false promises, failing to develop one's talents, and failing to help those in need are all morally wrong because they are all actions that I would not be willing to have everyone do or actions that not everyone could do.

To do as you would be done by, is the plain, sure, and undisputed rule of morality and justice.

.....
LORD CHESTERFIELD

3. *Imperfect duty to oneself.* Imagine a third man who has a useful natural ability that he could develop through practice and exercise. However, he is comfortably situated and would rather indulge in pleasure than make the effort needed to develop and improve himself. But he asks himself whether his maxim of neglecting his natural gifts as he is tempted to do is consistent with his duty. He sees then that a system of nature could conceivably exist with such a universal law, even if everyone (like the South Sea islanders) were to let his talents rust and devoted his life to idleness, amusement, and sex—in a word, to pleasure. But although his maxim *could* be conceived as a universal law of nature, he could not will it to be a universal law of nature; that is, he could not will such a law to be implanted in us like a natural instinct. For our natural abilities enable us to achieve whatever goals we might have, so every rational person who has any goals whatever necessarily wills to have his abilities develop.

4. *Imperfect duty to others.* Imagine a fourth man who is prosperous, while he sees that others have to put up with great wretchedness. Suppose he could help them but he asks himself: What concern is it of mine? Let everyone have whatever happiness God or his own efforts can give him. For my part I will not steal from people or envy their fortune. But I do not want to add to their well-being or help them when they are in need! Undoubtedly, if such a way of thinking became universal, the human race could continue to exist; it might even be better off than if everyone were to talk about sympathy and good will and occasionally practiced it, but generally continued to cheat whenever they could and betrayed and violated the rights of others. However, although that maxim *could* be a universal law of nature, one could not *will* it to be a universal law of nature without having one's will come into conflict with itself. For we know that many situations will arise in which one will need the love and concern of others. So if one were to will such a law of nature, one would be depriving himself of that aid he knows he will need.

These are a few of the duties that can be derived from the principle we have laid down. They fall into two classes. The basic rule for evaluating the morality of our actions is this: We must be *able to will* that the maxim of our action should be a universal law. One class of duties (the perfect duties) consists of actions whose maxim cannot even be consistently *conceived* as a universal law of nature, much less could *we will* such maxims to be universal laws of nature. The second class of duties (the imperfect duties) consists of actions whose maxims *could* become universal laws of nature, but it is impossible for us to *will* that their maxims should be universal laws since such a will would be in conflict with itself. It is easy enough to see that the first class of actions violates our strict duties, while the second class violates only what it would be meritorious for us to do. Thus these four examples cover the main kinds of duties and show that even the strictness of the obligation can be determined by this one principle and not by reference to the purpose of the action.²⁶

The Categorical Imperative. Kant believes, then, that there is one fundamental moral principle, which he calls the “categorical imperative.” This is the principle that it is morally right for me to do something only if it is something that I am willing to have everyone do. He believes that from this categorical imperative we can derive all our moral duties. Expressed in terms of reasons or maxims, Kant’s **categorical imperative** states that we should do something only if we are willing to have the maxim, or reason, governing our action become a universal law that everyone follows. What Kant is saying, then, is that I should never do something unless (1) it is possible for everyone to do it and (2) I am willing to have everyone do it.

In the passage above, Kant provided four examples of how the categorical imperative should be applied. Some additional examples and discussion may make his

²⁶ Ibid., 28, 51–55.

views clearer. Take the first part of Kant's categorical imperative: that I should never do something *unless doing it is possible for everyone*. Consider this example: Is it wrong for you to cheat on an exam? Kant would say this: Ask yourself whether it is possible for everyone to always cheat on exams; can cheating be universalized? Clearly, if everyone always cheated on exams, the very practice of giving exams would break down. For what instructor would give an exam knowing that everyone will cheat on it? Because it is not possible for everyone to always cheat on exams, it is wrong for you to cheat on this exam. In short, Kant's categorical imperative says that it is wrong to make exceptions of ourselves: If everyone cannot do something, then doing it is wrong for me.

Notice that Kant is not a utilitarian: He does not argue that if the consequences of a universal practice would be bad, then the practice is bad. Instead, he claims that a practice is wrong for me if the practice becomes self-defeating when everyone tries to do it; the practice is wrong for me because everyone cannot do it. His appeal is not to consequences, but to consistency: we must consistently apply to ourselves what we believe should apply to everyone else. Philosophers since Kant have used the term *universalize* to refer to having everyone do something. When Kant asks us to think about what would happen if everyone were to engage in a certain practice, he is asking us to think about what would happen if the practice was universalized.

Take some other examples. Consider a game, such as poker or football or checkers. Is it wrong for you to secretly cheat during a game? Ask yourself whether it is possible for everyone to always cheat at games. Obviously, if everyone always cheated at games, all game activities would soon break down and cease. Because it is not possible for everyone to always cheat at games, it is wrong for you to cheat at a game. Or consider lying. Is it wrong for you to lie? Clearly, if everyone always lied, then language would break down and no one would be able to make even lying statements with it. Because everyone cannot always lie, it is wrong for you to lie.

But Kant also believes that there are some actions that are wrong, not because it is impossible for everyone to do them, but because we are not willing to have everyone do them. For example, is it wrong to refuse to help others when they are in great need? Kant suggests that it is possible for everyone to refuse to help the needy but that we would not be willing to live in a world where everyone did this. We know there may be times, Kant suggests, when we need others to help us desperately. So we would not be willing to live in a world where no one ever helped those in great need, although such a world is possible. Or consider racism and sexism. Is it wrong to discriminate based on someone's race or sex? Ask yourself whether you would be willing to have everyone discriminate by race or sex. Clearly, it is possible for a society to exist in which everyone discriminates. But would you want to live in such a world? Clearly not, for if everyone discriminates against those who are not of the same race or sex, then you will be discriminated against on some occasions. You would definitely not be willing to have everyone always discriminate against those not of the same race or sex. So, discriminating against others on the basis of their race or sex is wrong for you.

A Second Version of the Categorical Imperative. Although there is only one categorical imperative principle, Kant felt that we could state it in various ways. Kant believed that every person has a fundamental human dignity that gives the person value "beyond all price." Thus, it is wrong to use people or to manipulate them without their consent to satisfy our own personal desires. Kant expressed these ideas by restating his categorical imperative in these words: Act so that you always treat people as ends in themselves, and never merely use them as means. In the following passage he explains this second version of the categorical imperative:

The end of all moral speculations is to teach us our duty.

.....
DAVID HUME

Do not do unto others as you would they should do unto you. Their tastes may not be the same.

.....
GEORGE BERNARD SHAW

QUICK REVIEW

Kant gives a second version of the categorical imperative: (1) Every human being is an end in himself—a person whose capacity to choose for himself must be respected—so (2) we should always treat people as ends in themselves—as persons whose capacity to choose for themselves must be respected—and not *only* use them as means to achieve our own goals.

Now I say that man and generally any rational being exists as an end in himself. In all his actions, whether they concern himself or other rational beings, we must always regard a man as an end and not merely as a means to be arbitrarily used by this or that will. . . . Accordingly [a second version of] the categorical imperative can be formulated as follows: *So act as to treat humanity, whether in your own person or in that of any other, always also as an end and never merely as a means.* We will now inquire whether this version can be applied in practice. We will again consider our previous four examples:

1. *Strict duty to oneself.* A person who is thinking of committing suicide should ask himself whether his action is consistent with the idea that humanity is an end in itself. If he kills himself to escape his suffering, he is using a person (himself) merely as a means to maintain a tolerable existence. But a person is not a thing. That is to say, a person cannot be used merely as a means, but must always be respected as an end in himself. I cannot, therefore, dispose of my own person by mutilating, despoiling, or killing myself. . . .

2. *Strict duty to others.* A man who is thinking of making a lying promise will realize that he would be using others merely as means because he would not be letting them participate in the goal of the actions in which he involves them. For the people I would thus be using for my own purposes would not have consented to be treated in this way and to that extent they would not have participated in the goals to be attained by the action. . . .

3. *Meritorious duty to oneself.* We should not only refrain from violating our own humanity as an end in itself, but we should also try to make our actions harmonize with the fact that our humanity is such an end. Now humanity has certain abilities that we can perfect to a greater or lesser extent. . . . When we neglect to develop these abilities we are not doing something that is destructive of humanity as an end in itself. But such neglect clearly does not advance humanity as an end in itself.

4. *Meritorious duty to others.* All men by nature want to be happy. Now humanity probably could survive even if people never helped each other achieve their happiness, but merely refrained from deliberately harming one another. But this would only be a negative way of making our actions harmonize with the idea that humanity is an end in itself. The positive way of harmonizing with this idea would be for everyone to help others achieve their goals so far as he can. The goals of every person who is an end in himself should also be my goals if my actions are really to be in full harmony with the idea that the person's humanity is an end in itself.²⁷

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To treat people as ends in themselves is to treat them as they freely and knowingly choose to be treated, but to treat them *only* as means is to use them to achieve one's goals without letting them decide whether they want this or not. So, Kant's second version of the categorical imperative says that I should treat people only as they freely and knowingly consent to be treated, not merely use them as means to my own goals.

Kant's second version of the categorical imperative implies that we should not use people as objects, as things whose only function is to satisfy our desires. Instead, he claims, morality requires that we always give others the opportunity to decide for themselves whether or not they will join us in our actions. As he puts it in the passage above, a person must let others "participate in the goal of the actions in which he involves them." This rules out all forms of deception, force, coercion, and manipulation. It also rules out all the ways we have of exploiting other people to satisfy our own desires without their free consent. Moreover, the second version implies that we should promote people's capacity to choose for themselves. It also implies that we should strive to develop this capacity in ourselves and in those around us (for example, through education).

Again, some additional examples may clarify what Kant has in mind in this second version of the categorical imperative. For Kant, to respect a person as an *end* is to respect her capacity to freely and knowingly choose for herself what she will do. To treat a person as a means is to use the person to achieve my personal interests.

²⁷ Ibid., 68.

In effect, this second version says that we should treat people only as they freely and knowingly consent to be treated, not merely as a means to my own goals. Kant would say that it is wrong to force or to manipulate a person into doing something because in manipulating or forcing a person I am failing to treat the person as she has freely and knowingly consented to be treated. Is it wrong to lie or to steal from a person? Lying or stealing involves doing something to a person without her free and knowing consent and so these are both wrong. What about helping those in great need? Kant would say that when people are in great need (such as the very poor), their ability to choose for themselves is compromised. Because we have a duty to promote people's capacity to choose for themselves, we should help those whose poverty prevents them from exercising their capacity to choose for themselves.

Notice that Kant is not saying that it is wrong to use people for our own ends. He is saying only that it is wrong to use people for our own ends when we have not given them a choice in the matter. For example, consider ordering a taxi driver to take you to the bus station. Clearly, you are “using” the driver as a “means” to get to the bus station. Does this make it immoral? Kant would doubtless say that it is not wrong. For when the taxi driver accepted the job of driving a taxi, he agreed to take people to the destination they ordered him to. So, when you now order him to take you to the station, you are treating him as he *previously* consented to be treated. Notice also that Kant is not saying that it is wrong to do things to people that at the moment they do not want you to do. Take, for example, a teacher who flunks a student or a judge who puts a lawbreaker in jail. Clearly, neither the student nor the lawbreaker wants to be treated this way. So, is it immoral to do this to them? Kant would probably say that in reality each is being treated as he *previously* consented to be treated. The student consented to be graded by the teacher when he signed up for the course. The lawbreaker consented to be treated according to the laws of this country when he chose to live in it.

Conflicts. Nevertheless, Kant's theory has a few problems. First, duties frequently conflict, and Kant's theory does not seem to give us an obvious way of resolving such conflicts. If, as Kant argues, it is always wrong to tell a lie and always wrong to break a promise, then which do I choose when these duties conflict? Second, the acts that the categorical imperative says are *always* wrong do not always seem wrong. For example, Kant says that it is absolutely wrong ever to lie, no matter what good might come of telling the lie. Yet is it wrong to lie to save your life? To save someone from serious pain or injury? There is no compelling reason why certain actions should be prohibited without exception. Apparently, Kant failed to distinguish between persons making no exceptions to rules and rules having no exceptions. If a person should make no exceptions to rules, then one should never exempt oneself from being bound by a rule. But it does not therefore follow that the rule has no exceptions. In fairness to Kant, however, we should note that the limitations of his examples do not necessarily discredit his ethical theory.

Some Implications of Kantian Ethics. Many people today believe that Kantian ethics provides rich insights into the moral life. To see more clearly the kind of understanding of morality that Kant's ethics provides, let us consider the topic we discussed earlier: sexual behavior. Sometimes, when two people have sex, one of them might feel afterward that his or her partner's behavior was morally objectionable. The person might express this by saying that their partner “used” him or her or treated him or her as an “object.” The philosopher Thomas Mappes has pointed out that the very idea of “using another person” and of being treated like “an object” comes from the philosophy of Immanuel Kant. It derives from Kant's principle that

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The second version of Kant's categorical imperative rules out deception, force, coercion, and manipulation, but it allows us to use people as means to our goals so long as they freely and knowingly consent to it.

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Critics say Kant's theory cannot deal with conflicts among duties; critics also claim that his theory implies that certain acts (such as lying) are always wrong no matter what the circumstances might be, and this implication seems mistaken.

it is morally wrong to use a person “merely as a means.” But what, exactly, does Kant’s principle imply about ethics in sex? Mappes explains what it is to use a person sexually:

The morally significant sense of “using another person” is best understood by reference to the notion of voluntary informed consent. . . . Using another person (in the morally significant sense) can arise in at least two important ways: via coercion, which is antithetical to voluntary consent, and via deception, which undermines the informed character of voluntary consent. . . . It seems clear, then, that A may sexually use B in at least two distinctive ways, (1) via coercion and (2) via deception.

There are a host of clear cases in which a [fully competent adult] person “uses” another precisely because the former employs deception. . . . Consider this example. One person, A, has decided, as a matter of personal prudence based on past experience, not to become sexually involved outside the confines of a loving relationship. Another person B, strongly desires a sexual relationship with A but does not love A. B, aware of A’s unwillingness to engage in sex without love, professes love for A, thereby hoping to win A’s consent to a sexual relationship. B’s ploy is successful; A consents. When the smoke clears and A becomes aware of B’s deception it would be both appropriate and natural for A to complain, “I’ve been used.”

Forcible rape is the most conspicuous, and most brutal way of sexually using another person via coercion. . . . A man who rapes a woman by the employment of sheer physical force, by simply overpowering her, employs occurrent coercion. . . . When the victim of rape is treated as if she were a physical object, there we have one of the most vivid examples of the immoral using of another person.

Frequently, forcible rape involves not occurrent coercion but dispositional coercion. In dispositional coercion, the relevant factor is not physical force but the threat of harm. . . . For example, a man threatens to kill or beat a woman if she resists his sexual demands. She “consents,” that is, she submits to his demands. . . . [But] it is coerced.

Although the threat of immediate and serious bodily harm stands out as the most brutal way of coercing consent to sexual interaction, we must not neglect the employment of other kinds of threats to this same end. . . . Consider . . . the following case: Mr. Supervisor makes a series of increasingly less subtle sexual overtures to Ms. Employee. These advances are consistently and firmly rejected by Ms. Employee. Eventually, Mr. Supervisor makes it clear that the granting of “sexual favors” is a condition of her continued employment. . . . [This] case [also] . . . involve[s an] attempt to sexually use another person.²⁸

Kant’s theory is clearly very useful for helping us see what our moral obligations are. In fact, in some respects, it sheds more light on common dilemmas in sexual matters than do other approaches to the morality of sex. For Kant’s theory identifies the central importance of showing respect for the dignity of our sexual partners and the key significance of consent in morally legitimate sexual interactions.

However, some people have criticized this Kantian approach to sex because, like utilitarianism, it is too permissive. Utilitarianism approves of any sexual activity if its pleasures and advantages are sufficiently great. Yet the Kantian approach approves of virtually any sexual activity except forced sex. This seems to include all sexual activity between informed and voluntarily consenting adults, including incest, homosexuality, and adultery, if one’s spouse consents to the adultery. For many people, this is clearly a morally objectionable result.

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Using Kant’s theory, Mappes argues that it is wrong to sexually use a person through coercion or deception, which is why rape and sexual harassment of employees are wrong.

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Critics say that Kant’s theory implies that any kind of sexual activity between informed and consenting persons is morally right, and this seems too permissive; other critics argue that free, rational consent may not be possible where sex is concerned.

28 Thomas A. Mappes, “Sexual Morality and the Concept of Using Another Person,” in *Social Ethics: Morality and Social Policy*, ed. Thomas A. Mappes and Jane S. Zembaty (New York: McGraw-Hill, 1992).

Moreover, many have questioned whether the Kantian approach to sex makes idealistic assumptions about how real our consent can be. In the throes of sexual desire, in the sexual heat of the moment, are people really able to give their voluntary informed consent? Isn't the sometimes overwhelming power of sex incompatible with free, rational consent? Feminists have suggested that sexual roles are designed to ensure male dominance over women and to mask from women their own real sexual desires and needs. In the context of such false consciousness, isn't the Kantian faith in informed consent unreal? For example, does the prostitute genuinely consent to her situation? Feminists sometimes ask the following: Does any woman truly consent to sex?

QUESTIONS

1. Reconsider the four situations described in question 4 of Section 7.3 from the viewpoint of a Kantian theorist, using the first version of his categorical imperative. What decisions and actions do you think are called for? Would the judgments differ from the utilitarian's? from those of natural law ethics?
2. Can the second version of the categorical imperative be applied to resolving the four situations described previously? Illustrate. Would the judgments differ from the conclusions of applying the first version?
3. Would it be possible or desirable to universalize the following maxims?
 - a. "Never work unless you absolutely must."
 - b. "Always do your own thing unless it hurts somebody else."
 - c. "Give nothing and expect nothing in return."
 - d. "Sell all you have and give to the poor."
 - e. "Let your conscience be your guide."
 - f. "Always stick by your friends."
 - g. "Never discriminate against someone on the basis of race, religion, color, or sex."
 - h. "Never punish a child physically."
 - i. "Without prior approval, never take something that doesn't belong to you."

PHILOSOPHY AT THE MOVIES

Watch *Liar, Liar* (1997) in which Fletcher Reed, a successful lawyer and habitual liar who regularly breaks his promises to spend time with his son, Max, misses Max's birthday party. When Max makes a birthday wish that for a full day his father be unable to lie, Fletcher finds that no matter how much he struggles, he cannot lie—which makes it particularly difficult to defend his client in court. Kant claims that the categorical imperative implies that it is always wrong to lie; utilitarianism claims that it is permissible to lie if lying has better consequences than any other alternative. What is the view of this movie?



Buddhist Ethics

Buddhist ethics cannot be considered a divine command theory because Buddhism does not believe in a God that issues commands. Yet Buddhism provides important insight into the moral life, and for centuries it has influenced the moral behavior of millions. Because many people in the West today are turning to it for enlightenment, here we briefly consider its implications for ethics.

Buddhism's emphasis on ethical behavior can be generalized in two ways. First, volitional (voluntary) actions are considered supremely important because, according to the moral law of causation (karma), they determine our destiny. We will be what

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Buddhism considers volitional actions as supremely important because they contribute to a person's karma, which then determines a person's future; Buddhism also considers morality and wisdom to be closely related.